

TENTATIVE RULING

Evelyn M. Lambdin, et al.
v.
Mangold Property Management, Inc., et al.
22CV001731

Plaintiffs' Motion to Set Aside or Suspend Enforcement of Attorney's Fees Order

Hearing Date: June 18, 2026

As a result of the unsuccessful prosecution in both the trial and appellate courts of their civil action for retaliation and other claims against Defendants Mangold Property Management, Inc., Ashley Blackmon, Craig Coming, and Kyle Strutner (collectively, "Defendants"), Plaintiffs Evelyn M. Lambdin and Lawrence C. McGhee (collectively, "Plaintiffs") were ordered to pay Defendants' attorney fees totaling \$130,280. [Order Granting Defendants' Motion for Costs and Attorney Fees filed 9/6/24; *see* Code Civ. Proc. § 425.16, subd. (c)(1).] Regarding that fee-award order, Plaintiffs ask the Court to either (i) set it aside [Motion at 2:14-18], (ii) modify it [*id.* at 2:20-27], or (iii) stay or suspend its enforcement [Reply at 1:5-7]. After reviewing the moving and opposing papers, Plaintiffs' motion is **DENIED**.

Plaintiffs' motion did not reference any relevant legal authority justifying an order to set aside, modify, stay, or suspend the fee-award order. They failed to cite a case that permits this Court to use its equitable authority under Code of Civil Procedure section 128, subdivision (a)(8), to stay enforcement of the fee order. Additionally, their other authorities do not persuade the Court to rule in their favor. [*See* Code Civ. Proc. § 284 (inapplicable because that addresses the ability to change attorneys during a proceeding); *McClain v. Kissler* (2019) 39 Cal.App.5th 399, 405 (inapplicable because it involves relief from default under Code of Civil Procedure section 473); *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681 (same); *Rappleyea v. Campbell* (1994) 8 Cal.4th 975 (whether the court has the equitable power under section 128, subdivision (a)(8), to set aside a default when the conditions of section 473 had not been met); *Olivera v. Grace* (1942) 19 Cal.2d 570 (same); *People v. Dueñas* (2019) 30 Cal.App.5th 1157 (inapplicable because it involves criminal fines); Code Civ. Proc. §§ 685.040 and 685.050 (inapplicable because they apply to additional costs or fees which may be allowed to the judgment creditor rather than the underlying judgment itself); Code Civ. Proc. § 918 (the trial court may stay the enforcement of any judgment or order on appeal up to 10 days beyond the last date on which the notice of appeal could be filed).]

Here, Plaintiffs chose to assert 17 causes of action against Defendants. Pursuant to the Code of Civil Procedure section 425.16, subdivision (c)(1), a prevailing defendant on a special motion to strike is entitled to recover that defendant's attorney's fees and costs, including costs on appeal. [*See Frym v. 601 Main Street LLC* (2022) 82 Cal.App.5th 613, 622.] When they successfully moved to strike Plaintiffs' complaint under the anti-SLAPP rules, Defendants were awarded \$10,200 in attorney fees. Plaintiffs then appealed that decision, which resulted in the affirmance of the lower court's order and an even larger attorney fee award of \$130,280. The trial and appellate courts have held that the fee award is reasonable. [*Lambdin v. Mangold*

Property Management, Inc. (Nov. 20, 2025, H052517) (nonpub. opn.).] If and when Defendants intend to collect the fees that have been awarded to them, Plaintiffs, as judgment debtors, may respond to Defendants' collection efforts based on existing enforcement procedures and statutory exemptions. [*See, e.g.*, Code Civ. Proc. §§ 703.010, et seq.; 11 U.S.C. § 362.]

Accordingly, the motion is **DENIED**. Defendants shall prepare the Proposed Order consistent with this Tentative Ruling and give notice to Plaintiffs.